

HOUSE BILL 1660

By McCalmon

AN ACT to amend Tennessee Code Annotated, Title 4;
Title 5; Title 6; Title 7 and Title 29, relative to
racing facilities.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 29, Chapter 3, is amended by adding the following new section:

(a) As used in this section:

(1) "Area of the racing facility" means the area within a five (5) mile radius of the perimeter of the property or contiguous group of properties where a racing facility is located; and

(2) "Racing facility" and "racetrack" mean a designated area or facility where competitive vehicle and motorsport races are conducted and include the track, spectator areas, garages, and any associated grounds, buildings, or appurtenances used to operate the races.

(b) A racing facility or racetrack is not subject to an action brought by the owner of a surrounding real property under any nuisance, taking, or other theory if the racing facility or racetrack was built before the owner of the surrounding real property purchased the real property or built in the area of the racing facility or racetrack.

(c) The immunity provided under this section applies regardless of any changes to the size, scope, configuration, technology, or type of racing conducted at the facility, provided such changes are lawful.

(d) This section applies to claims against racing facilities and racetracks located in this state prior to the date the owner of surrounding real property bringing a claim

acquired or improved the real property and applies to claims filed on or after the effective date of this act, regardless of the date on which the cause of action is alleged to have arisen.

(e) A political subdivision of this state shall not adopt or enforce any ordinance, resolution, or regulation that would restrict, limit, or prohibit the operation of a racing facility or racetrack in a manner inconsistent with this section.

(f) This section does not exempt racing facilities from compliance with state or federal environmental laws or health and safety regulations.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.